

Court No. - 19

Case :- CONTEMPT APPLICATION (CIVIL) No. - 2024 of 2021

Applicant :- Smt. Mewati And Anr.

Opposite Party :- Anil Kumar Singh Exe.Engineer M.V.V.N.L. Tanda
Ambedkarnagar

Counsel for Applicant :- Ram Kumar Singh,Uday Pratap Singh

Counsel for Opposite Party :- Neera Yadav

Hon'ble Rajeev Singh,J.

Learned counsel for the applicants prays for and is allowed
10 days' time to file reply to the affidavit of compliance.

List in the 2nd week of January, 2023.

Order Date :- 3.12.2022

VKS

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Ambedkarnagar

Counsel for Applicant :- Ram Kumar Singh,Uday Pratap Singh

Counsel for Opposite Party :- Neera Yadav

Hon'ble Shree Prakash Singh,J.

As prayed by the learned counsel for the petitioners, list/put up this matter in the next week.

Order Date :- 7.2.2024

AKS

Court No. - 19

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Opposite Party :- Anil Kumar Singh Exe.Engineer M.V.V.N.L.
Tanda Ambedkarnagar

Counsel for Applicant :- Ram Kumar Singh,Uday Pratap
Singh

Counsel for Opposite Party :- Neera Yadav

Hon'ble Shree Prakash Singh,J.

Vide order dated 02.11.2020, this Court has passed the order in Writ Petition No. 18654 (M/B) of 2020 and directed the Executive Engineer concerned to decide the representation in the light of Clause 4.5(d) of the Electricity Supply Code, 2005 within a period of six weeks.

The matter is decided and an order of three lines has been passed in the year 2022, whereby, directing the petitioner to deposit an amount of Rs. 1,36,350/- and it is not clear that there is any consideration of Clause 4.5(d) of the Electricity Supply Code, 2005, which shows the callous attitude of the officers towards the order passed by this Court.

In view of the aforesaid, list/put up this matter on 12.03.2024.

It is provided that if the order dated 02.11.2020 is not complied with in its letter and spirit, the Executive Engineer, Ambedkar Nagar shall remain present before this Court to explain as to why contempt proceeding may not be initiated against him.

It is further directed that the Executive Engineer shall also file personal affidavit with respect to the delay of two years in passing the order dated 05.01.2022, which is in contravention of the order passed by the writ court.

Order Date :- 15.2.2024

Anurag

Court No. - 19

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Tanda Ambedkarnagar

Counsel for Applicant :- Ram Kumar Singh,Uday Pratap
Singh

Counsel for Opposite Party :- Neera Yadav

Hon'ble Shree Prakash Singh,J.

Learned counsel for the applicants has submitted that in place of deciding the representation in the light of clause 4.5 (d) of Electricity Supply Code, 2005, the Executive Engineer has passed the order dated 5.1.2022; in derogation of the order; asking the applicants to deposit an amount of Rs.1,36,350 as the charge for issuance of electricity connections.

He added that in fact, the applicants are aggrieved as the Electricity Department was erecting poles on the farm of the applicants without following provisions under clause 4.5 (d) of the Electricity Supply Code, 2005 and they have made representation but same has not been decided yet.

Learned counsel for the opposite party submits that the opposite party may be given two weeks time to revisit the order dated 5.1.2022.

In view of the aforesaid request of the learned counsel for the opposite party, list/put up this matter on 10.4.2024.

It is provided that if the order of the writ Court is not complied with by then, the present Executive Engineer shall remain present in person to show cause as to why contempt proceedings may not be initiated against him.

Order Date :- 12.3.2024

Ram Murti

Court No. - 8

Case :- CONTEMPT APPLICATION (CIVIL) No. - 2024 of 2021

Applicant :- Smt. Mewati And Anr.

Opposite Party :- Anil Kumar Singh Exe.Engineer M.V.V.N.L. Tanda
Ambedkarnagar

Counsel for Applicant :- Ram Kumar Singh,Uday Pratap Singh

Counsel for Opposite Party :- Neera Yadav

Hon'ble Rajeev Singh,J.

1. Heard.

2. On 12.03.2024 following order was passed:-

"Learned counsel for the applicants has submitted that in place of deciding the representation in the light of clause 4.5 (d) of Electricity Supply Code, 2005, the Executive Engineer has passed the order dated 5.1.2022; in derogation of the order; asking the applicants to deposit an amount of Rs.1,36,350 as the charge for issuance of electricity connections.

He added that in fact, the applicants are aggrieved as the Electricity Department was erecting poles on the farm of the applicants without following provisions under clause 4.5 (d) of the Electricity Supply Code, 2005 and they have made representation but same has not been decided yet.

Learned counsel for the opposite party submits that the opposite party may be given two weeks time to revisit the order dated 5.1.2022.

In view of the aforesaid request of the learned counsel for the opposite party, list/put up this matter on 10.4.2024.

It is provided that if the order of the writ Court is not complied with by then, the present Executive Engineer shall remain present in person to show cause as to why contempt proceedings may not be initiated against him."

3. Neither affidavit of compliance is filed by respondent-officer nor he is present today.

4. Issue bailable warrant to the applicants.

5. List this case on 21.05.2024.

6. Chief Judicial Magistrate, Ambedkar Nagar shall ensure the compliance of order passed by this Court and shall ensure presence of the respondent before this Court on the next date of listing.

Order Date :- 10.4.2024
Arpan

Court No. - 8

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Opposite Party :- Anil Kumar Singh Exe.Engineer M.V.V.N.L.
Tanda Ambedkarnagar

Counsel for Applicant :- Ram Kumar Singh,Uday Pratap
Singh

Counsel for Opposite Party :- Neera Yadav

Hon'ble Rajeev Singh,J.

1. Ms. Neera Yadav, learned counsel for opposite party informed that the order of Writ Court has already been complied with, as the formal order has been passed by Shri Mohit Kumar, Executive Engineer, Madhyanchal Vidyut Vitran Nigam Ltd., Tanda, Ambedkar Nagar on 06.04.2024 by which the letter dated 05.01.2022 has been revoked, therefore, the present contempt application has lost its efficacy and may be dismissed.

2. Learned counsel for the applicants does not dispute on the submission of learned counsel for the opposite party.

3. Considering the submission of learned counsel for the opposite party as well as order dated 06.04.2024, no contempt is made out against the opposite party.

4. Accordingly, the present contempt application is hereby **dismissed**.

5. Consigned to record.

Order Date :- 21.5.2024

V. Sinha